

Summary for Decision-Makers

# **Strengthening Regional Ocean Governance for the High Seas**

Opportunities and Challenges to Improve  
the Legal and Institutional Framework  
of the Southeast Atlantic and  
Southeast Pacific



## Citation

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# 1. Key Findings: Strengthening Regional Ocean Governance for the High Seas in the Southeast Atlantic and the Southeast Pacific

General summary of assessment of the Southeast Atlantic and Southeast Pacific regions:

- Member States within **the two regions are diverse in terms of culture, language and available capacity** – this is particularly the case in the Southeast Atlantic region;
- **There exists varied and uneven participation in regional and global agreements within both regions**, making it difficult to fully address issues related to biodiversity beyond national jurisdiction (BBNJ) without an adequate legal basis or, in the case of the Southeast Atlantic, also an institutional basis;
- **Organisations within the regions have varying and non-comprehensive or limited mandates** to address issues related to BBNJ;
- There is **limited cross-sectoral cooperation within the regions**, with individual organisations adopting their own principles, resolutions and recommendations for addressing BBNJ challenges.
- Coastal States in the Southeast Atlantic and Southeast Pacific could choose to **implement a common approach or policy for the region on conservation priorities** by championing flag State responsibility to impose regulations regarding areas or activities that are not currently covered by a competent management authority; impose stricter standards than required by a competent management authority; and provide regulation where the relevant regional fisheries management organisation (RFMO) or sectoral management body has not adopted measures;
- **Challenges to cross-sectoral cooperation can be eased if more States in the regions become parties to key international and regional agreements**, including a future BBNJ agreement. Indeed, such participation may be seen as a priority, as this would provide a shared basis for common action;
- Coastal States could **form coalitions to promote mutual interest in specific BBNJ-related issues** within existing processes and in the negotiations for a new treaty;

Options to strengthen regional ocean governance for the high seas in the Southeast Atlantic and Southeast Pacific:

- Cross-sectoral cooperation and coordination between organisations to **ensure the implementation of the ecosystem-based approach** to manage marine resources and ensure conservation and sustainable use of BBNJ could be improved through e.g. **joint programmes, Memoranda of Understanding, and participation in events exist** and could be a first step in building cooperation;
- States could **promote conservation and sustainable use of BBNJ by voicing their views and proposing management actions at global and regional fora**. States could, for example, make efforts to advance ecosystem-based management within RFMOs by advocating that they put a greater emphasis on assessment of non-target species and management of bycatch;

- The expansion of efforts to coordinate on BBNJ issues by **empowering regional seas programmes to consider areas beyond national jurisdiction (ABNJ) could support a coordinated, regional approach to conservation and sustainable management;**
- **A robust scientific basis and developed capacity for taking action could also be supported** to ensure the establishment of conservation and management measures and ensure the complementarity of sectoral measures.

States could also consider that the negotiation of a BBNJ agreement is an opportunity to bring coherence to a fragmented governance regime, provide additional support for improved cross-sectoral cooperation and allow for the establishment or strengthening of regional integration mechanisms. The negotiation of a new agreement, therefore offers a mode by which to support and achieve many of the above mentioned options for strengthening regional ocean governance.

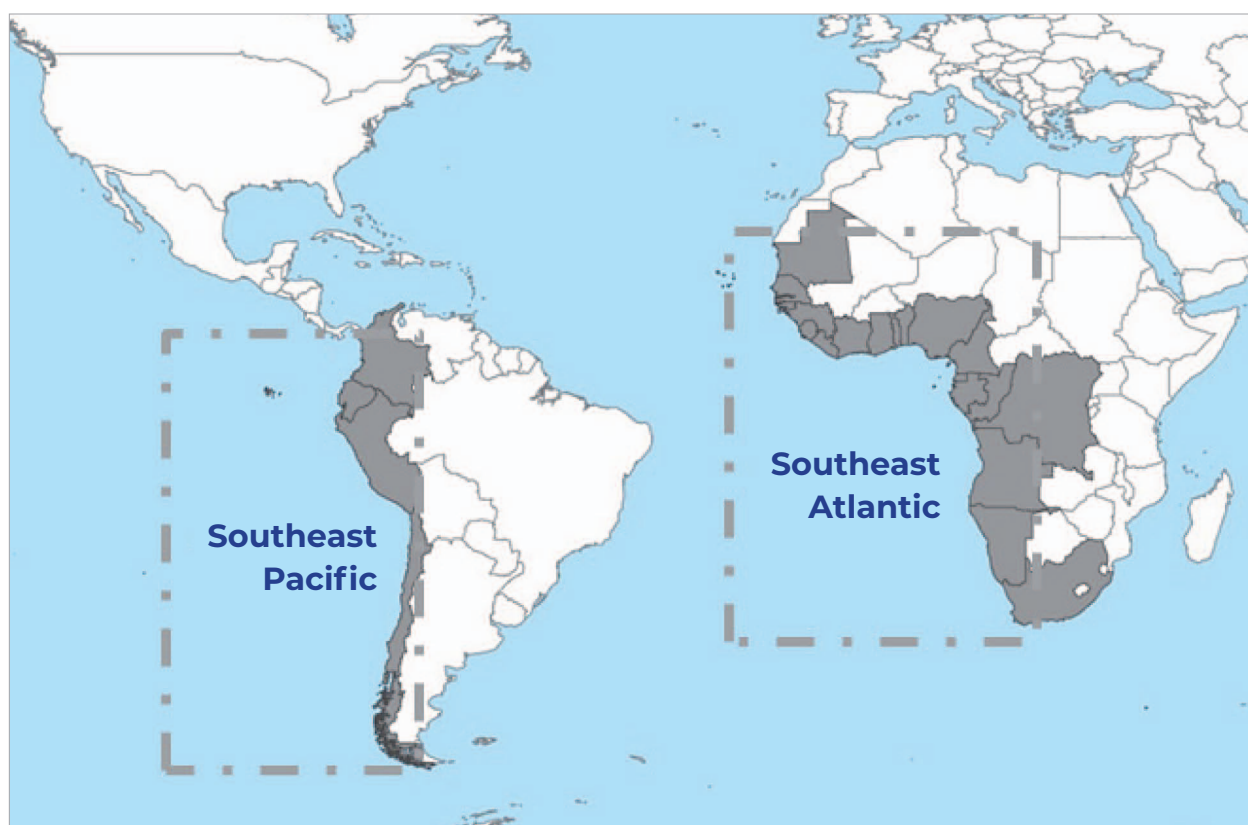
The detailed key findings, including the key features of regional high seas governance frameworks in the Southeast Atlantic and Southeast Pacific and options for strengthening them, can be found in Chapter 6 of the full report. The full report can be downloaded from the STRONG High Seas project website at: [https://www.prog-ocean.org/wp-content/uploads/2018/12/IASS\\_Report\\_181220\\_Final.pdf](https://www.prog-ocean.org/wp-content/uploads/2018/12/IASS_Report_181220_Final.pdf).

## 2. Introduction

The Southeast Atlantic and Southeast Pacific regions are both characterised by their high biological productivity, supported by important oceanic currents. Recognising the need to ensure conservation and sustainable use of this biodiversity, coastal States in these regions cooperate through regional organisations to improve ocean governance, including in areas beyond national jurisdiction (ABNJ).

Within these two regions action is being taken to protect and conserve marine biodiversity.

Members of the Permanent Commission for the South Pacific (CPPS) signed the 2012 Galapagos Commitment, in which they commit to promote coordinated action 'regarding their interests in living and non-living resources in ABNJ'.<sup>1</sup> In the Southeast Atlantic, member States of the Abidjan Convention requested that the Secretariat set up a working group to study all aspects of the conservation and sustainable use of biodiversity beyond national jurisdiction (BBNJ) within the framework of the Convention.<sup>2</sup>



**Figure 1: Focal Regions of the STRONG High Seas Project<sup>3</sup> (Source: IASS [2018])**

<sup>1</sup> CPPS, Compromiso de Galapagos para el Siglo XXI, VII Reunion de Ministros de Relaciones Exteriores de la Comision Permanente del Pacifico Sur (Galapagos, 17 de agosto de 2012), Art. VIII.20; <http://cpps.dyndns.info/cpps-docs-web/planaccion/docs2016/Mayo/compromiso-galapagos-siglo21.pdf>.

<sup>2</sup> Abidjan Convention COP Decision CP.11/10.

<sup>3</sup> Credit: ESRI (2008): World countries 2008. ESRI Data & Maps.

This summary for decision-makers is based on the report 'Strengthening Regional Ocean Governance for the High Seas: Opportunities and Challenges to Improve the Legal and Institutional Framework of the Southeast Atlantic and Southeast Pacific'. It is targeted towards policy and decision-makers as well as others working on issues of ocean governance, particularly in the Southeast Atlantic and Southeast Pacific regions<sup>4</sup> The report was prepared as part of the *Strengthening Regional Ocean Governance for the High Seas ('STRONG High Seas')* project and builds on previous studies, particularly in relation to the Southeast Pacific.<sup>5</sup> It is intended to provide a review of the relevant governance frameworks currently in place for the management of high seas biodiversity in these regions. The report uses the issues under discussion in the ongoing negotiations for a new legally binding BBNJ agreement under the United Nations, as well as selected Sustainable Development Goal (SDG) 14 targets, as a lens through which to assess progress towards conservation and sustainable use.

The BBNJ process and the SDG targets present opportunities for States to strengthen the ocean governance framework in their respective regions and thereby contribute to marine biodiversity conservation, sustainable development and economic growth. Because of the oceanographic and ecological connectivity, activities taking place in ABNJ oftentimes have an impact on coastal waters and vice versa. This means it is important to consider conservation efforts, the sustainable use of resources, address threats to the marine environment and develop adequate management of human activities both within and beyond national jurisdiction. Particularly, strengthened collaboration and cooperation between all relevant global, regional and sectoral organisations will be necessary to improve governance in the regions and is an important step to underpin, strengthen and develop the existing global ocean governance framework further and to achieve the conservation and sustainable use of BBNJ and the SDG targets. Furthermore, strengthening regional ocean governance mechanisms will be essential as they will play an important role in underpinning global standards by developing, implementing and enforcing regionally and sectorally-based agreements.<sup>6</sup>

<sup>4</sup> The full report can be downloaded from the STRONG High Seas project website at: [https://www.prog-ocean.org/wp-content/uploads/2018/12/IASS\\_Report\\_181220\\_Final.pdf](https://www.prog-ocean.org/wp-content/uploads/2018/12/IASS_Report_181220_Final.pdf).

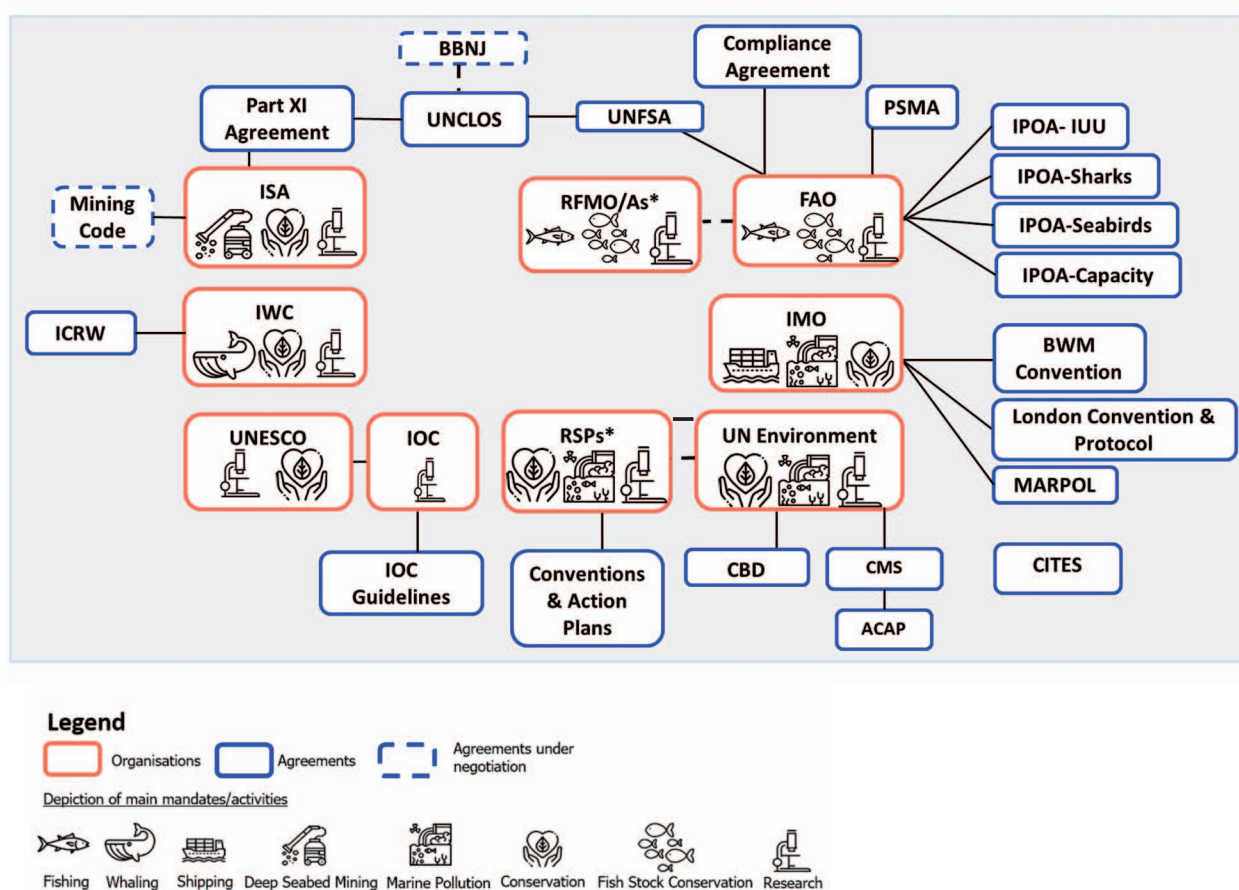
<sup>5</sup> See: Durussel, Carole Claire, Challenges in the conservation of high seas biodiversity in the Southeast Pacific, Doctor of Philosophy thesis, Australian National Centre for Ocean Resources and Security (ANCORS) – Faculty of Law, Humanities and the Arts, University of Wollongong, 2015. <http://ro.uow.edu.au/theses/4415>; Durussel, C., Soto Oyarzun, E., Urrutia S., O. (2017): Strengthening the legal and institutional framework of the Southeast Pacific: Focus on the BBNJ package elements. – International journal of marine and coastal law, 32, 4, p. 635–671. DOI: <http://doi.org/10.1163/15718085-12324051>; UNEP-WCMC (2017). Governance of areas beyond national jurisdiction for biodiversity conservation and sustainable use: Institutional arrangements and cross-sectoral cooperation in the Western Indian Ocean and the South East Pacific. Cambridge (UK): UN Environment World Conservation Monitoring Centre. 120 pp.

<sup>6</sup> For more recommendations on how to underpin the global level through regional and sectoral governance, see Gjerde, K., Boteler, B., Durussel, C., Rochette, J., Unger, S., Wright, G., 'Conservation and Sustainable Use of Marine Biodiversity in Areas Beyond National Jurisdiction: Options for Underpinning a Strong Global BBNJ Agreement through Regional and Sectoral Governance', STRONG High Seas Project, 2018.

### 3. Ocean Governance Framework for the High Seas in the Southeast Atlantic and Southeast

A number of agreements, conventions, international organisations and regulatory bodies are in place for the management of human activities in ABNJ (see Figure 2). These include

fishing, shipping, and the laying of submarine cables and pipelines, with new activities potentially on the horizon, such as the exploitation of deep seabed mineral resources.



**Figure 2: Main Organisations and Legal Agreements for the Conservation and Sustainable Use of BBNJ<sup>7</sup> (Source: IASS [2018])**

<sup>7</sup> Icons made by Freepik (fishing, whaling, conservation, research), Mavadee (shipping), Surang (deep seabed mining, marine pollution) and Made by Made (fish stock conservation) from [www.flaticon.com](http://www.flaticon.com), licensed by <http://creativecommons.org/licenses/by/3.0/> (accessed: December 2018). The asterisk denotes that some RFMO/As and RSPs do not have a mandate for ABNJ. The dotted lines towards the RFMO/As and RSPs denotes that some of them are established by the FAO/UN Environment, while other are independent. Soft law agreements included in this figure are: IOC-UNESCO, 'IOC Criteria and Guidelines on Transfer of Marine Technology (CGTMT)' (2003) ('IOC Guidelines'); United Nations Food and Agriculture Organization, 'International Plan of Action for the Management of Fishing Capacity' (1999) ('IPOA-Capacity'); United Nations Food and Agriculture Organization, 'International Plan of Action for Reducing Incidental Catch of Seabirds in Longline Fisheries' (1999) ('IPOA-Seabirds'); United Nations Food and Agriculture Organization, 'International Plan of Action for the Conservation and Management of Sharks' (1999) ('IPOA-Sharks'); United Nations Food and Agriculture Organization, 'International Plan of Action to Prevent, Deter, and Eliminate Illegal, Unreported and Unregulated Fishing' (2001) ('IPOA-IUU'). The BBNJ agreement is currently being negotiated under the UN and the Mining Code is being developed under the ISA.



**Fisheries:** States cooperate through Regional Fisheries Management Organisations and Arrangements (RFMO/As).<sup>8</sup> Management measures of RFMOs/As are implemented pursuant to provisions in each organisations' foundational agreement, UNCLOS, the 1995 United Nations Fish Stocks Agreement (UNFSA),<sup>9</sup> the 1993 FAO Compliance Agreement,<sup>10</sup> the 2009 FAO Ports States Measures Agreement, which specifically targets illegal, unreported and unregulated (IUU) fishing,<sup>11</sup> as well as various binding and voluntary agreements, codes of conduct and plans of action adopted under the aegis of the United Nations Food and Agriculture Organization (FAO).<sup>12</sup> The International Whaling Commission (IWC) provides for the international regulation of whaling and the management of whale stocks.<sup>13</sup>

**Shipping:** Marine transportation is regulated by a number of conventions and agreements under the International Maritime Organization (IMO), with the International Convention for the Prevention of Pollution from Ships ('MARPOL'),<sup>14</sup> the Convention on the Prevention of Marine Pollution by Dumping of Wastes and Other Matter ('London Convention') and its Protocol,<sup>15</sup> and the International Convention for the Control and Management of Ships' Ballast Water and Sediments ('Ballast Water Management Convention' or 'BWM Convention') being the key agreements with regard to protecting the marine environment.<sup>16</sup>

<sup>8</sup> RFMOs have a management mandate and a Secretariat operating under a governing body of member States, whereas Arrangements have no management authority and no formal institutional structure. See: <http://www.fao.org/fishery/topic/16800/en> (accessed: December 2018).

<sup>9</sup> *United Nations Agreement for the Implementation of the Provisions of the United Nations Convention on the Law of the Sea of 10 December 1982 Relating to the Conservation and Management of Straddling Fish Stocks and Highly Migratory Fish Stocks*, opened for signature 8 September 1995, ATS 8 (entered into force 11 December 2001).

<sup>10</sup> *Agreement to Promote Compliance with International Conservation and Management Measures by Fishing Vessels on the High Seas*, opened for signature 29 November 1993, ATS 26 (entered into force 24 April 2003).

<sup>11</sup> *Agreement on Port State Measures to Prevent, Deter and Eliminate Illegal, Unreported and Unregulated Fishing*, opened for signature 22 November 2009 (entered into force 5 June 2016).

<sup>12</sup> See especially: United Nations Food and Agriculture Organization, *Code of Conduct for Responsible Fisheries* (1995); United Nations Food and Agriculture Organization, 'International Plan of Action for the Management of Fishing Capacity' (1999); United Nations Food and Agriculture Organization, 'International Plan of Action for Reducing Incidental Catch of Seabirds in Longline Fisheries' (1999); United Nations Food and Agriculture Organization, 'International Plan of Action for the Conservation and Management of Sharks' (1999); United Nations Food and Agriculture Organization, 'International Plan of Action to Prevent, Deter, and Eliminate Illegal, Unreported and Unregulated Fishing' (2001).

<sup>13</sup> *Agreement to Promote Compliance with International Conservation and Management Measures by Fishing Vessels on the High Seas*, opened for signature 29 November 1993, ATS 26 (entered into force 24 April 2003).

<sup>14</sup> *Protocol of 1997 to amend the International Convention for the Prevention of Pollution from Ships of 2 November 1973, as modified by the Protocol of 17 February 1978*, opened for signature 26 September 1997, ATS 37 (entered into force 19 May 2005).

<sup>15</sup> *Convention on the Prevention of Marine Pollution by Dumping of Wastes and Other Matter*, opened for signature 13 November 1972, ATS 16 (entered into force 30 August 1975); *Protocol to the Convention on the Prevention of Marine Pollution by Dumping of Wastes and Other Matter, 1972*, opened for signature 7 November 1996, 36 ILM 1 (entered into force 24 March 2006) amended in 2006.

<sup>16</sup> *International Convention for the Control and Management of Ships' Ballast Water and Sediments*, opened for signature 13 February 2004 (entered into force 8 September 2017). See also: *International Convention for the Safety of Life at Sea*, opened for signature 1 November 1974, 1184 UNTS 2 (entered into force 25 May 1980); *International Convention on Oil Pollution Preparedness, Response and Co-operation*, opened for signature 30 November 1990, ATS 12 (entered into force 13 May 1995).



**Seabed mining:** Activities with regard to deep seabed mining in the Area are regulated by the International Seabed Authority (ISA), as established under Part XI of UNCLOS and the 1994 Agreement relating to the Implementation of Part XI of UNCLOS.<sup>17</sup> The ISA oversees activities related to the exploration and exploitation of and equitable sharing of benefits from mineral resources in the Area, reviews applications for exploration and exploitation, conducts EIAs, and is responsible for ensuring the effective protection of the marine environment through the necessary measures.<sup>18</sup>

In addition to the above-mentioned organisations, a number of international conventions and organisations are relevant to the conservation and sustainable use of BBNJ, namely:

- The Intergovernmental Oceanographic Commission of the United Nations Educational, Scientific and Cultural Organization (IOC-UNESCO) for matters related to marine science and the transfer of marine technology;
- UN Environment, the global environmental authority under the United Nations;
- Agreements focused on the conservation of species of fauna and flora, notably: the Convention on Biological Diversity (CBD);<sup>19</sup> the Convention on Migratory Species (CMS);<sup>20</sup> and the Convention on International Trade in Endangered Species of Wild Fauna and Flora (CITES);<sup>21</sup>
- Regional instruments, such as Regional Seas Programmes, and other regional initiatives.

### 3.1 Southeast Atlantic

In addition to the global organisations and regulatory bodies, there are four regional fisheries bodies that have a mandate to work in the ABNJ of the Southeast Atlantic, three of which are regional fisheries management organisations (RFMOs) with a management mandate (see Figure 3):

- The International Commission for the Conservation of Atlantic Tunas (ICCAT), responsible for the management and conservation of tunas and tuna-like species in the whole of the Atlantic Ocean;
- The Commission for the Conservation of Southern Bluefin Tuna (CCSBT), with the mandate to manage and conserve southern bluefin tuna, generally occurring in waters between 30° and 50° south;
- The South East Atlantic Fisheries Organisation (SEAFO), with the mandate to conserve and manage species such as alfonso, orange roughy, oreo dories, pelagic armourhead, sharks, Patagonian toothfish and deep-sea red crab in the southern part of the Southeast Atlantic region;<sup>22</sup> and
- The Fishery Committee for the Eastern Central Atlantic (CECAF), a regional fisheries body with an advisory mandate, focuses mainly on research on fishery resources and capacity building of its member States.

<sup>17</sup> UNCLOS, art. 137; United Nations General Assembly, *Agreement relating to the Implementation of Part XI of the United Nations Convention on the Law of the Sea of 10 December 1982*, GA Res 48/263, 48th sess, Agenda Item 36, A/RES/48/263 (17 August 1994). See: [http://www.un.org/depts/los/convention\\_agreements/texts/unclos/closindxAgree.htm](http://www.un.org/depts/los/convention_agreements/texts/unclos/closindxAgree.htm) (accessed: September 2018).

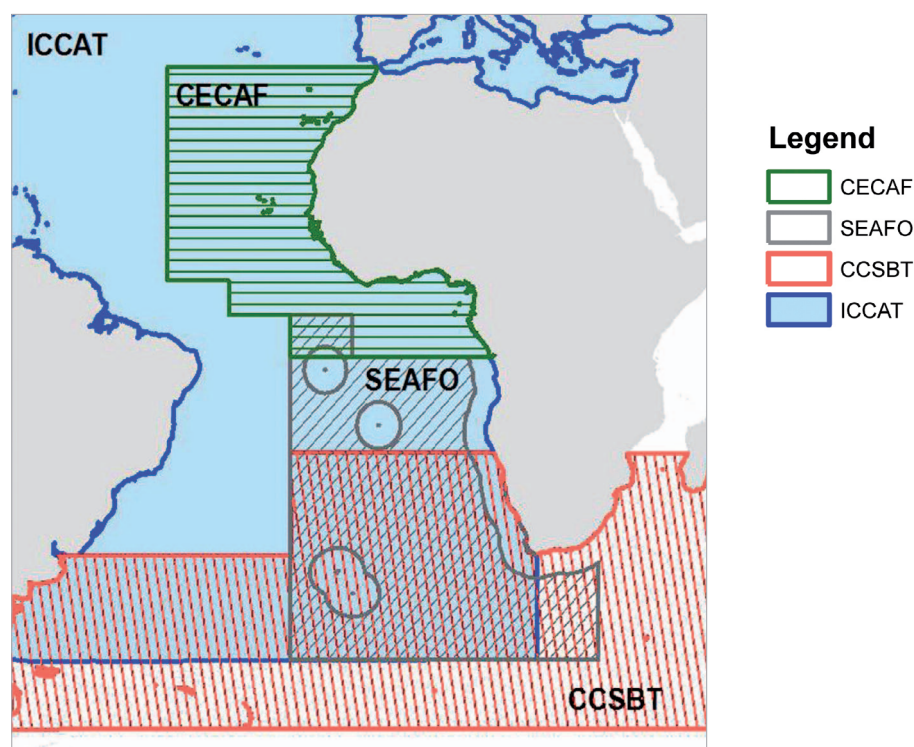
<sup>18</sup> UNCLOS, arts. 140, 145, and 147.

<sup>19</sup> *Convention on Biological Diversity*, opened for signature 5 June 1992, ATS 32 (entered into force 29 December 1993). Although the CBD has no jurisdictional mandate for ABNJ – only, as outlined in CBD art. 4, in the case of processes and activities under the jurisdiction of its contracting Parties, it provides a broad cooperation obligation with regard to the conservation and sustainable use of marine biodiversity in ABNJ (art. 5).

<sup>20</sup> *Convention on the Conservation of Migratory Species of Wild Animals*, opened for signature on 23 June 1979, ATS 32 (entered into force 11 January 1983).

<sup>21</sup> *Convention on International Trade in Endangered Species of Wild Fauna and Flora*, opened for signature 3 March 1973, ATS 29 (entered into force 1 July 1975).

<sup>22</sup> Source: <http://www.seafo.org/About> (accessed: September 2018).



**Figure 3: Geographical Scope of Regional Sectoral Organisations Covering ABNJ in the Southeast Atlantic<sup>23</sup> (Source: Dr. Maria Dias and Dr. Ana Carneiro based on FAO data [2018])**

The geographical scope of several other regional organisations extend across parts of the South-east Atlantic, while their mandates only extend to coastal and marine environments within national jurisdiction (see Table 1). These include:

- The Abidjan Convention, a regional seas programme with a focus on the prevention, reduction and combatting of marine pollution and the establishment of protected areas for fragile ecosystems and endangered species;
- The Ministerial Conference on Fisheries Cooperation Among African States Bordering the Atlantic (ATLAFCO), with the objective to promote and strengthen regional cooperation on fisheries development and the coordination and harmonisation of efforts and capacities of stakeholders for the conservation and exploitation of fisheries resources;
- The Sub-Regional Fisheries Commission (SRFC), the Fishery Committee for the West

Central Gulf of Guinea (FCWC) and the Regional Fisheries Committee for the Gulf of Guinea (COREP), with an advisory role in promoting State coordination and cooperation in the management of fisheries, particularly to combat IUU fishing; and

- The Benguela Current Commission (BCC), with the objective of restoring and protecting the biological integrity of the Benguela Current Large Marine Ecosystem.

Although they do not have a mandate to work in ABNJ, these organisations could play a role in this region. They could for instance work to bring issues of conservation concern, such as declining and depleted species and habitats or marine pollution to the attention of RFBs, providing scientific data on such species, habitats and threats to the marine environment, and strengthening ties between the different countries of the region, as well as building States' capacities.

<sup>23</sup> Map Source: Dr. Maria Dias and Dr. Ana Carneiro based on FAO data. See: <http://www.fao.org/figis/geoserver/factsheets/rfbs.html> (accessed: December 2018).

**Table 1: List of Global and Regional Organisations with a Mandate in the Southeast Atlantic**

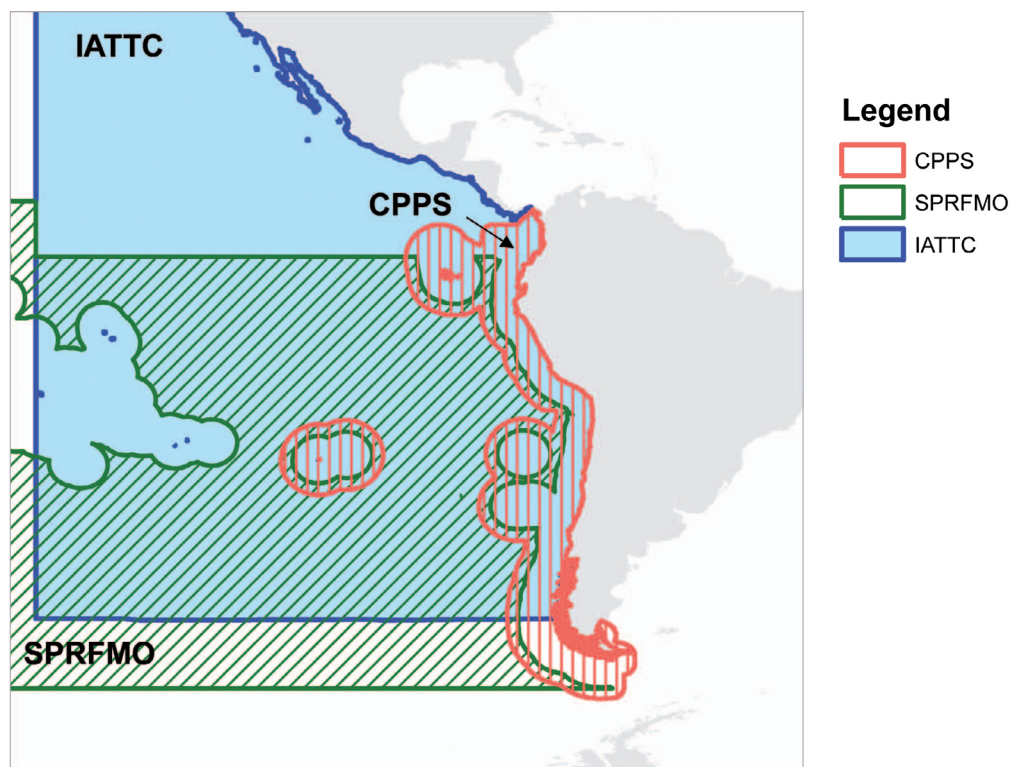
| Short Name                | Name                                                                                                               | Sector      | Scope    | ABNJ Mandate |
|---------------------------|--------------------------------------------------------------------------------------------------------------------|-------------|----------|--------------|
| <b>FAO</b>                | Food and Agriculture Organization                                                                                  | Fisheries   | Global   | Yes          |
| <b>ISA</b>                | International Seabed Authority                                                                                     | Science     | Global   | Yes          |
| <b>IMO</b>                | International Maritime Organisation                                                                                | Environment | Global   | Yes          |
| <b>UN Environment</b>     | United Nations Environment Programme                                                                               | Shipping    | Global   | Yes          |
| <b>IOC-UNESCO</b>         | Intergovernmental Oceanographic Commission of the United Nations Educational, Scientific and Cultural Organization | Mining      | Global   | Yes          |
| <b>IWC</b>                | International Whaling Commission                                                                                   | Fisheries   | Global   | Yes          |
| <b>CECAF</b>              | Fishery Committee for the Eastern Central Atlantic                                                                 | Fisheries   | Regional | Yes          |
| <b>CCSBT</b>              | Commission for the Conservation of Southern Bluefin Tuna                                                           | Fisheries   | Regional | Yes          |
| <b>ICCAT</b>              | International Commission for the Conservation of Atlantic Tunas                                                    | Whaling     | No       | Yes          |
| <b>SEAFO</b>              | South East Atlantic Fisheries Organisation                                                                         | Fisheries   | Regional | Yes          |
| <b>Abidjan Convention</b> |                                                                                                                    | Regional    | Regional | No           |
| <b>ATLAFCO</b>            | Ministerial Conference on Fisheries Cooperation Among African States Bordering the Atlantic                        | Fisheries   | Regional | No           |
| <b>SRFC</b>               | Sub-Regional Fisheries Commission                                                                                  | Fisheries   | Regional | No           |
| <b>FCWC</b>               | Fishery Committee for the West Central Gulf of Guinea                                                              | Environment | Regional | No           |
| <b>COREP</b>              | Regional Fisheries Committee for the Gulf of Guinea                                                                | Fisheries   | Regional | No           |
| <b>BCC</b>                | Benguela Current Commission                                                                                        | Fisheries   | Regional | No           |



### 3.2 Southeast Pacific

In addition to the global organisations and regulatory bodies, there are two RFMOs that have a mandate to work in the ABNJ of the Southeast Pacific: the South Pacific Regional Fisheries Management Organisation (SPRFMO), responsible for the conservation and sustainable use of fishery resources within the South Pacific; and the Inter-American Tropical Tuna Commission (IATTC), responsible for the management and conservation of tunas and tuna-like species in the Eastern Pacific Ocean. A third regional organisation, the Permanent Commission for the South Pacific (CPPS), has a jurisdictional mandate that includes both the national waters of its member States as well as in some cases

the adjacent high seas areas of the Southeast Pacific, although the extent and scope of this competence is not clearly legally defined or outlined (see Figure 4).<sup>24</sup> CPPS is a strategic regional alliance among its member States and also the host Secretariat for the Regional Seas Programme for the Southeast Pacific.<sup>25</sup> A further organisation operates in the region, but with a limited mandate within the national jurisdiction of its member States: the Organización Latinoamericana de Desarrollo Pesquero (OLDEPESCA; Latin American Organisation for Fisheries Development) is an intergovernmental organisation for regional cooperation on issues such as fisheries and aquaculture. This organisation has however not been operational in recent years (see Table 2).<sup>26</sup>



**Figure 4: Geographical Scope of Regional Sectoral Organisations Covering ABNJ in the Southeast Pacific<sup>27</sup> (Source: Dr. Maria Dias and Dr. Ana Carneiro based on FAO data [2018])**

<sup>24</sup> CPPS Estatuto art 4 gives CPPS the competency to promote the conservation of marine living resources beyond the national jurisdiction of its member States without mentioning to which extent this competency applies. Article 1 of the Lima Convention applies to areas within national jurisdiction and adjacent high seas areas that are impacted by marine pollution.

<sup>25</sup> CPPS is a strategic regional alliance among its member States with no management mandate.

<sup>26</sup> See: <http://www.fao.org/fishery/rfb/oldepesca/en> (accessed: September 2018).

<sup>27</sup> Map Source: Dr. Maria Dias and Dr. Ana Carneiro based on FAO data. See: <http://www.fao.org/figis/geoserver/factsheets/rfbs.html> (accessed: December 2018).

**Table 2: List of Global and Regional Organisations with a Mandate in the Southeast Pacific**

| Short Name            | Name                                                                                                               | Sector                                    | Scope    | ABNJ Mandate |
|-----------------------|--------------------------------------------------------------------------------------------------------------------|-------------------------------------------|----------|--------------|
| <b>FAO</b>            | Food and Agriculture Organization                                                                                  | Fisheries                                 | Global   | Yes          |
| <b>ISA</b>            | International Seabed Authority                                                                                     | Mining                                    | Global   | Yes          |
| <b>IMO</b>            | International Maritime Organisation                                                                                | Shipping                                  | Global   | Yes          |
| <b>UN Environment</b> | United Nations Environment Programme                                                                               | Environment                               | Global   | Yes          |
| <b>IOC-UNESCO</b>     | Intergovernmental Oceanographic Commission of the United Nations Educational, Scientific and Cultural Organization | Science                                   | Global   | Yes          |
| <b>IWC</b>            | International Whaling Commission                                                                                   | Whaling                                   | Global   | Yes          |
| <b>IATTC</b>          | Inter-American Tropical Tuna Commission                                                                            | Fisheries                                 | Regional | Yes          |
| <b>SPRFMO</b>         | South Pacific Regional Fisheries Management Organisation                                                           | Fisheries                                 | Regional | Yes          |
| <b>CPPS</b>           | Permanent Commission for the South Pacific                                                                         | Strategic                                 | Regional | Yes*         |
| <b>OLDEPESCA</b>      | Latin American Organisation for Fisheries Development                                                              | Regional Alliance & Environment Fisheries | Regional | No           |

\*: CPPS' jurisdictional mandate includes both the national waters of its member States as well as in some cases the adjacent high seas areas of the Southeast Pacific, although the extent and scope of this competence is not clearly legally defined or outlined. Article 4 of the 2013 CPPS Statute states that CPPS has the competence to promote the conservation of marine living resources within the national jurisdiction of its member States and beyond, focusing especially on straddling and highly migratory fish stocks; to foster active participation of its member States in the exploration and exploitation of non-living resources in ABNJ; and to promote a holistic assessment of the natural resources and fisheries of the Southeast Pacific with a view to its economic development and sustainable use (CPPS Estatuto, Art. 4a, 4d and 4i). Under the 1981 Lima Convention, its jurisdiction extends to adjacent high seas areas affected by marine and coastal pollution (Convenio para la Protección del Medio Marino y la Zona Costera del Pacífico Sudeste, Art. 1).

## 4. Conservation and Sustainable Use of Biodiversity in ABNJ in the Southeast Pacific and Southeast Atlantic

Based on the institutional and legal framework in place for the ABNJ of the Southeast Atlantic and Southeast Pacific regions briefly outlined in Chapter 3, this section highlights the key messages from the analyses performed in the report in relation to the implementation of the four BBNJ elements and selected SDG 14 targets in the Southeast Atlantic and Southeast Pacific for the conservation and sustainable use of marine biodiversity in ABNJ.

### 4.1 BBNJ Element: Area-based Management Tools (ABMTs)

ABMTs have been described as comprising ‘spatial and non-spatial tools that afford a specified area higher protection than its surroundings due to more stringent regulation of one or more or all human activities’.<sup>28</sup> Examples of such tools include: marine spatial planning (MSP), marine protected areas (MPAs), Particularly Sensitive Sea Areas (PSSAs), Areas of Particular Environmental Interest (APEIs) and the closure of Vulnerable Marine Ecosystems (VMEs) to fishing.<sup>29</sup> As noted by UN Environment-WCMC (2018), these tools can be combined within a specific geographical area.<sup>30</sup>

There is currently no global and cross-sectoral process for the establishment, implementation and enforcement of ABMTs in ABNJ, particularly

for MPAs. The new BBNJ agreement therefore provides an important opportunity to establish such a framework. At the regional level, several sectoral organisations have established ABMTs within their Convention areas, including in ABNJ, but these measures are applicable only to State Parties to these organisations, and are not coordinated between organisations. Some organisations have designated MPAs in ABNJ, such as those adopted by the OSPAR Commission in the North-East Atlantic and by the Commission for the Conservation of Antarctic Marine Living Resources (CCAMLR) in the Southern Ocean, but these measures are also applicable only to State Parties to these organisations and are limited in scope.<sup>31</sup>

**Our analyses showed** that there are no PSSAs, IMO Special Areas, International Whaling Commission (IWC) Sanctuaries or APEIs in place in the ABNJ of the Southeast Atlantic or Southeast Pacific. A proposal for a South Atlantic Ocean Sanctuary has been recurrently submitted to the IWC but has yet to achieve the majority of votes necessary.<sup>32</sup> In the Southeast Atlantic and Southeast Pacific regions, only RFMOs have established ABMTs in ABNJ, such as VME closures or other area-based fisheries management measures. However, there is no coordination of ABMTs between different RFMOs, nor any legal obligation for RFMOs to cooperate to ensure that such measures are integrated and ecosystem-based.

<sup>28</sup> T Greiber, K Gjerde, E Druel, D Currie and D Diz, ‘An International Instrument on Conservation and Sustainable Use of Biodiversity in Marine Areas beyond National Jurisdiction: Exploring Different Elements to Consider. Paper V: Understanding Area-based Management Tools and Marine Protected Areas’ (2014). German Federal Agency for Nature Conservation, p. 1.

<sup>29</sup> A protected area is defined by IUCN as ‘a clearly defined geographical space, recognised, dedicated and managed, through legal or other effective means, to achieve the long-term conservation of nature with associated ecosystem services and cultural values’. Dudley, N. (Editor) (2008). Guidelines for Applying Protected Area Management Categories. Gland, Switzerland: IUCN. x + 86pp.

<sup>30</sup> UNEP-WCMC (2018). A review of area-based planning tools. What is the potential for cross-sectoral planning in areas beyond national jurisdiction? Technical document Produced as part of the GEF ABNJ Deep Seas Project. Cambridge (UK): UN Environment World Conservation Monitoring Centre. 71pp.

<sup>31</sup> E.g. OSPAR does not have the mandate to manage most human activities in ABNJ, including fishing, shipping and seabed mining.

<sup>32</sup> See: <https://iwc.int/sanctuaries> (accessed: September 2018).

In the case of the Southeast Atlantic, ICCAT has adopted area and time closures as well as restrictions on fish-aggregating devices (FADs) in certain circumstances, for instance to protect juvenile fish.<sup>33</sup> ICCAT also has several resolutions in place for the conservation of by-catch species, such as shark species, seabirds and sea turtles.<sup>34</sup> In 2016, ICCAT also adopted a resolution on ecosystems that are important and unique for ICCAT species, which aims to examine the information available on the trophic ecology of pelagic ecosystems of importance to species covered under the ICCAT Convention.<sup>35</sup> To date, SEAFO has closed twelve known or representative areas of VMEs to fishing.<sup>36</sup> It further prohibits the use of gillnets and the catch of deep water sharks, and has bycatch management measures in place for seabirds, sea turtles and sharks.<sup>37</sup> In the case of CCSBT, the use of large-scale driftnets to catch or harvest southern bluefin tuna is prohibited throughout its Convention area, in line with long-standing commitments in UNGA resolutions.<sup>38</sup>

In the case of the Southeast Pacific, SPRFMO prohibits the use of largescale pelagic drift-nets and deep water gillnets, places bycatch management measures in place for seabirds and bottom fishing closures for the protection of VMEs, as well as prohibits bottom fishing in its Convention area unless vessels have undertaken an assessment of their potential bottom fishing impacts.<sup>39</sup> IATTC has established fishery closures and restrictions for its yellowfin, bigeye, and skipjack tuna fisheries,<sup>40</sup> as well as specific conservation measures for bluefin tuna, silky sharks, oceanic whitetip sharks, mobulid rays, seabirds, and sea turtles.<sup>41</sup> As of 2019, contracting Parties have to follow specific principles for the design and deployment of FADs to reduce the entanglement of sharks, sea turtles or any other species.

<sup>33</sup> See for instance: ICCAT, 'Recommendation by ICCAT on a Multi-Annual Conservation and Management Program for Tropical Tunas' (Resolution 16-01, 2017). ICCAT has also established an ad hoc working group on FADs, see: ICCAT, 'Recommendation by ICCAT to Establish an Ad Hoc Working Group on Fish Aggregating Devices (FADs)' (Resolution 16-02, 2017).

<sup>34</sup> See: <https://www.iccat.int/en/RecRes.asp> (accessed: September 2018).

<sup>35</sup> ICCAT, 'Resolution by ICCAT on Ecosystems that are Important and Unique for ICCAT Species' (Resolution 16-23, 2016).

<sup>36</sup> See: SEAFO 'Conservation Measure 30/15 on Bottom Fishing Activities and Vulnerable Marine Ecosystems in the SEAFO Convention Area' (adopted in December 2015, in force in February 2016).

<sup>37</sup> SEAFO 'Recommendation 2/2009 on Banning of Gillnets'; 'Recommendation 1/2008 on Banning of Deep-Water Shark Catch-ers'; 'Conservation Measure 04/06 on the Conservation of Sharks Caught in Association with Fisheries Managed by SEAFO' (adopted in October 2006); 'Conservation Measure 14/09: To Reduce Sea Turtle Mortality in SEAFO Fishing Operations'; 'Conservation Measure 25/12: On Reducing Incidental By-catch of Seabirds in the SEAFO Convention Area'.

<sup>38</sup> E.g. UNGA Resolutions 44/225 and 45/197, concerning large-scale pelagic drift-net fishing and its impact on the living marine resources of the world's oceans and seas. See: CCSBT, 'Resolution on Large-scale Driftnet Fishing' (2016).

<sup>39</sup> SPRFMO, 'Conservation and Management Measure for the Management of Bottom Fishing in the SPRFMO Convention Area' (CMM 03 – 2018, 2018), Arts. 8b, 10, and 22; SPRFMO, 'Conservation and Management Measure for Gillnets in the SPRFMO Convention Area' (CMM 08–2013, 2013); SPRFMO, 'Conservation and Management Measure for minimising bycatch of seabirds in the SPRFMO Convention Area' (CMM 09 – 2017, 2017).

<sup>40</sup> IATTC, 'Conservation Measures for Tropical Tunas in the Eastern Pacific Ocean during 2018-2020 and Amendment to Resolution C-17-01' (C-17 – 02, 2017).

<sup>41</sup> IATTC, 'Amendment to Resolution C-16-08 on a Long-Term Management Framework for the Conservation and Management of Pacific Bluefin Tuna in the Eastern Pacific Ocean' (C-18 – 02, 2018); IATTC, 'Measures for the Conservation and Management of Pacific Bluefin Tuna in the Eastern Pacific Ocean, 2019 and 2020' (C-18 – 01, 2018); IATTC, 'Conservation Measures for Shark Species, with Special Emphasis on the Silky Shark (*Carcharhinus falciformis*), for the years 2017, 2018, and 2019' (C-16 – 06, 2016); IATTC, 'Resolution on the Management of Shark Species' (C-16 – 05, 2016); IATTC, 'Resolution on the Conservation of Mobulid Rays Caught in Association with Fisheries in the IATTC Convention Area' (C-15 – 04, 2015); IATTC, 'Resolution to Mitigate the Impact on Seabirds of Fishing for Species Covered by the IATTC' (C-11 – 02, 2011); IATTC, 'Resolution to Mitigate the Impact of Tuna Fishing Vessels on Sea Turtles' (C-07 – 03, 2007); IATTC, 'Resolution on the Conservation of Oceanic Whitetip Sharks Caught in Association with Fisheries in the Antigua Convention Area' (C-11 – 10, 2011).



## 4.2 BBNJ Element: Environmental Impact Assessments (EIAs)

An EIA is defined by the Espoo Convention as a 'procedure for evaluating the likely impact of a proposed activity on the environment'<sup>42</sup> Whereas an EIA is conducted at the project/activity level, a strategic environmental assessment (SEA) provides a broader assessment that aims to better understand proposed activities, impacts and future developments within an area or sector when developing policies, plans or programmes, or when considering new technologies and activities.<sup>43</sup> The obligation to conduct an EIA for activities that may have a significant impact on the marine environment of marine areas within and beyond national jurisdiction is part of customary international law.<sup>44</sup> However, there are currently no comprehensive global rules and regulations with regard to the application of EIAs or SEAs in ABNJ.

**Our analyses showed** that SEAFO and ICCAT in the Southeast Atlantic and SPRFMO and IATTC in the Southeast Pacific have legal provisions on the use of the precautionary approach, including within ABNJ. In the Southeast Atlantic, SEAFO requires an EIA in the case of proposed exploratory bottom fishing activities but not in existing identified bottom fishing areas; whereas in the Southeast Pacific, SPRFMO's Convention area is closed to bottom fishing unless member States can prove through assessments that their activities will not have a significant adverse impact on marine ecosystems. In the Southeast Atlantic,

ICCAT conducts fisheries impact assessments and ecological risk assessments for certain by-catch species.<sup>45</sup> CCSBT also has to undertake a risk assessment of marine species associated with southern bluefin tuna to assess the impact of fishing and adopt appropriate measures. The regional seas programme hosted by the CPPS has a legal provision on the application of EIAs for activities that may have an adverse impact on designated marine and coastal protected areas as well as a legal provision on assessing the impacts of human activities on the coastal and marine environments and main pollutants.

## 4.3 BBNJ Element: Marine Genetic Resources (MGRs)

All species contain genetic material that can be of potential interest for biotechnological applications, such as in the field of pharmaceuticals, nutraceuticals, cosmetics, and biofuels. Especially species that live under extreme temperature, pressure or low-oxygen conditions can offer opportunities for new discoveries.<sup>46</sup> The Convention on Biological Diversity (CBD) defines genetic resources as 'genetic material of actual or potential value', whereby genetic material is 'any material of plant, animal, microbial or other origin containing functional units of heredity'.<sup>47</sup> The definition applied to MGRs for the purpose of the new BBNJ agreement will need to be agreed on by States during the negotiations as this will determine which access and benefit-sharing (ABS) mechanism will need to

<sup>42</sup> Convention on Environmental Impact Assessment in a Transboundary Context (Espoo, 25 February 1991, in force 10 September 1997) ('Espoo Convention') 1989 UNTS, Art. 1.

<sup>43</sup> Protocol on Strategic Environmental Assessment to the Convention on Environmental Impact Assessment in a Transboundary Context (Kiev, 21 May 2003, in force 11 July 2010) ('Kiev Protocol') 2685 UNTS, Art. 2.6.

<sup>44</sup> R. M. Warner, 'Oceans beyond boundaries: environmental assessment frameworks' (2012) 27 (2) International Journal of Marine and Coastal Law 481-499 citing: International Tribunal of the Law of the Sea (ITLOS), Advisory Opinion on Responsibilities and Obligations of States Sponsoring Persons and Entities with Respect to Activities in the Area, 1 February 2011, p. 44, para. 145, see: [http://www.itlos.org/fileadmin/itlos/documents/cases/case\\_no\\_17/adv\\_op\\_010211.pdf](http://www.itlos.org/fileadmin/itlos/documents/cases/case_no_17/adv_op_010211.pdf). See also: UNCLOS, art. 206.

<sup>45</sup> See for instance: ICCAT, 'Recommendation by ICCAT on the Conservation of Oceanic Whitetip Shark Caught in Association with Fisheries in the ICCAT Convention Area' (Resolution 10-07, 2011); ICCAT, 'Recommendation by ICCAT on Shortfin Mako Caught in Association with ICCAT Fisheries' (Resolution 10-06, 2011); ICCAT, 'Recommendation by ICCAT on the Conservation of Silky Sharks Caught in Association with ICCAT Fisheries' (Resolution 11-08, 2012); ICCAT, 'Recommendation by ICCAT on Porbeagle Caught in Association with ICCAT Fisheries' (Resolution 15-06, 2016); ICCAT, 'Recommendation by ICCAT on Shortfin Mako Caught in Association with ICCAT Fisheries' (Resolution 14-06, 2015); ICCAT, 'Supplemental Recommendation by ICCAT on Reducing Incidental By-Catch of Seabirds in ICCAT Longline Fisheries' (Resolution 11-09, 2012).

<sup>46</sup> M Vierros, C A Suttle, H Harden-Davies and G Burton, 'Who Owns the Ocean? Policy Issues Surrounding Marine Genetic Resources' (2016) 25(2) Limnology and Oceanography Bulletin 29 – 35.

<sup>47</sup> CBD, Art. 2.

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be adopted. MGRs and bioprospecting in ABNJ are currently not covered by the current legal framework. They will need to be addressed in a new BBNJ agreement.

**Our analyses showed** that there is a strong interest in MGRs from stakeholders in both the Southeast Atlantic and Southeast Pacific regions. In the Southeast Pacific in particular, CPPS member States highlighted their interest in MGRs in the 2012 Commitment of Galapagos and committed to promote coordinated action on this issue. An expert meeting was also organised in 2008 by the CPPS to discuss the legal and scientific status of MGRs in the Southeast Pacific region.

#### **4.4 BBNJ Element: Capacity Building and Transfer of Marine Technology**

Capacity building is defined by the United Nations Economic and Social Council as a long-term and continuing 'process by which individuals, organizations, institutions and societies develop abilities to perform functions, solve problems and set and achieve objectives'.<sup>48</sup> Marine technology has been defined by the Intergovernmental Oceanographic Commission (IOC) as being 'instruments, equipment, vessels, processes and methodologies required to produce and use knowledge to improve the study and understanding of the nature and resources of the ocean and coastal areas'.<sup>49</sup> Harden Davies (2017) highlights that this list can be extended to

also include, amongst others, scientific training, research cruise participation, as well as research exchanges and cooperation.<sup>50</sup> There are several references to capacity building and the transfer of marine technology in UNCLOS, the United Nations Fish Stocks Agreement, CBD, as well as in soft law provisions. IOC oversees a wide-ranging Capacity Development Programme and has developed criteria and guidelines on the transfer of marine technology. One of the key challenges for a future BBNJ agreement will be to ensure the active participation of developing and geographically disadvantaged States in scientific research and the management and commercial use of resources and sharing of their benefits in ABNJ.

**Our analyses showed** that SEAFO and ICCAT in the Southeast Atlantic and SPRFMO and IATTC in the Southeast Pacific have legal obligations requiring States Parties and Secretariats to assist developing States in the fulfilment of their legal obligations and to ensure their participation in the fisheries, including in ABNJ. In the Southeast Pacific, CPPS organises and hosts many workshops, expert meetings and trainings specifically aimed at informing its member States on specific issues of interest and enhancing their capacities. IOCAFRICA and the IOC Regional Committee for the Central Eastern Atlantic also play a role in capacity building in the Southeast Atlantic region.

<sup>48</sup> UN Economic and Social Council, Definition of Basic Concepts and Terminologies in Governance and Public Administration, E/C.16/2006/4, 5th session, Agenda Item 5 (5 January 2006), para. 33.

<sup>49</sup> IOC-UNESCO, 'Criteria and Guidelines on the Transfer of Marine Technology (CGTMT)/Critères et principes directeurs de la COI concernant le Transfert de Techniques Marines (CPTTM)', Paris, UNESCO, 2005. 68 pp. (IOC Information document, 1203), p. 9. See: <http://unesdoc.unesco.org/images/0013/001391/139193m.pdf>.

<sup>50</sup> H. Harden-Davies, 'Deep-sea genetic resources: new frontiers for science and stewardship in areas beyond national jurisdiction' (2017) 137 Deep-Sea Research Part 2: Topical Studies in Oceanography 504–513.

## 4.5 SDG 14.1: Marine Pollution

*By 2025, prevent and significantly reduce marine pollution of all kinds, in particular from land-based activities, including marine debris and nutrient pollution.*

According to UNCLOS, marine pollution refers to: 'the introduction by man, directly or indirectly, of substances or energy into the marine environment, including estuaries, which results or is likely to result in such deleterious effects as harm to living resources and marine life, hazards to human health, hindrance to marine activities, including fishing and other legitimate uses of the sea, impairment of quality for use of sea water and reduction of amenities'.<sup>51</sup> This includes pollution from land-based sources (e.g. chemicals, particles, industrial, agriculture and residential waste); vessels; exploration and exploitation of natural resources; atmospheric pollution; and dumping. In recent years, particular types of pollution have been the subject of particular concern as scientific knowledge has developed, e.g. plastics and noise pollution.<sup>52</sup>

The International Maritime Organisation (IMO) is the responsible United Nations specialised agency and has developed several conventions and protocols on the prevention of marine pollution from shipping and the regulation of dumping. At the regional level, regional seas programmes have played a leading role in facilitating the implementation of various provisions regarding marine pollution. **Our analyses showed** that, in the Southeast Pacific, SPRFMO has a legal provision on the prevention of marine pollution and waste originating from fishing vessels, discards, catch by lost or abandoned gear and impacts on other species and marine ecosystem.<sup>53</sup> Through the Lima Convention, CPPS' jurisdictional competence can be extend-

ed beyond national jurisdiction in cases when adjacent high seas areas could be affected by marine and coastal pollution.<sup>54</sup> In this respect, it has adopted specific protocols on land-based pollution, radioactive pollution, and pollution from hydrocarbons or other harmful substances. In the Southeast Atlantic, States in the region have cooperated through regional organisations, such as the Abidjan Convention and the Benguela Current Commission, to conduct activities regarding marine pollution, but these efforts have not yet extended to ABNJ. All coastal States of the Southeast Pacific and all but one in the Southeast Atlantic have ratified MARPOL Annexes I–V. However, only few coastal States in both regions have ratified the London Convention and Protocol, the MARPOL Annex VI or the Ballast Water Management (BMW) Convention.

## 4.6 SDGs 14.2 and 14.5: Management and Protection of Marine Ecosystems in ABNJ

*By 2020, sustainably manage and protect marine and coastal ecosystems to avoid significant adverse impacts, including by strengthening their resilience, and take action for their restoration in order to achieve healthy and productive oceans.*

*By 2020, conserve at least 10% of coastal and marine areas, consistent with national and international law and based on the best available scientific information.*

There is a general obligation under UNCLOS to protect and preserve the marine environment but there is no comprehensive legal framework for its application, including with respect to the conservation and sustainable use of BBNJ in ABNJ.

<sup>51</sup> UNCLOS, Article 1.1(4).

<sup>52</sup> R. Williams et al., 'Impacts of Anthropogenic Noise on Marine Life: Publication Patterns, New Discoveries, and Future Directions in Research and Management', *Ocean and Coastal Management* 115 (2015): 17 – 24, <https://doi.org/10.1016/j.ocecoaman.2015.05.021>; Andres Cozar et al., 'Plastic Debris in the Open Ocean', *Proceedings of the National Academy of Sciences of the United States of America* 111, no. 28 (July 15, 2014): 10239 – 44, <https://doi.org/10.1073/pnas.1314705111>.

<sup>53</sup> SPRFMO Convention art 3.1a.x.

<sup>54</sup> CPPS 1981 Lima Convention Art. 1; see: <http://cpps.dyndns.info/consulta/documentos/legal/convenios/CONVENIO%20PARA%20LA%20PROTECCION%20DEL%20MEDIO%20AMBIENTE%20Y%20ZONA%20COSTERA%20DEL%20PS/TEXTO%20DEL%20CONVENIO.pdf> (accessed: September 2018).

**Our analyses showed** that, in the Southeast Atlantic, SEAFO closed some VMEs to bottom fishing and ICCAT has adopted a number of relevant management measures and is strengthening efforts to move towards ecosystem-based management. CCSBT member States have to comply with other RFMOs' measures regarding marine species associated with southern bluefin tuna, regardless of their membership to these organisations, and report their implementation annually to the Compliance Committee. In contrast, in the Southeast Pacific, bottom fishing activities are prohibited throughout the SPRFMO Convention area and IATTC has adopted several measures to conserve bycatch species such as silky sharks, oceanic whitetip sharks, mobulid rays, seabirds, and sea turtles. All coastal States of the Southeast Atlantic and Southeast Pacific are Parties to the CBD and the Convention on International Trade in Endangered Species of Wild Fauna and Flora (CITES); in contrast, the Convention on the Conservation of Migratory Species of Wild Animals (CMS) and especially the Agreement on the Conservation of Albatrosses and Petrels (ACAP) do not have full coverage in the regions, particularly in the case of the Southeast Atlantic.

#### 4.7 SDG 14.4: Illegal, Unreported and Unregulated (IUU) Fishing

*By 2020, effectively regulate harvesting and end overfishing, illegal, unreported and unregulated fishing and destructive fishing practices and implement science-based management plans, in order to restore fish stocks in the shortest time feasible, at least to levels that can produce maximum sustainable yield as determined by their biological characteristics*

IUU fishing is defined as:

- **Illegal Fishing:** includes vessels operating in waters under the jurisdiction of a State with-

out its permission or in contravention of its laws; vessels operating in contravention of the conservation and management measures adopted by a RFMO, whether the State flying the flag is a member of the RFMO or a cooperating non-member; and vessels violating national laws or international obligations.<sup>55</sup>

- **Unreported Fishing:** unreported or misreported to the relevant national authority or RFMO, in contravention of applicable fisheries regulations.<sup>56</sup>
- **Unregulated Fishing:** fishing conducted by vessels without nationality, flying the flag of a country not party to the relevant RFMO, or fishing in unregulated areas or inconsistent or with State responsibilities under international law.<sup>57</sup>

RFMOs have a central role to play in preventing and deterring IUU fishing and both the United Nations Food and Agriculture Organization (FAO) Port State Measures and Compliance Agreements provide an important legal basis for combatting IUU fishing.

**Our analyses showed** that, apart from CECAF, all RFMOs of the Southeast Atlantic and Southeast Pacific regions have an IUU vessel list and IUU fishing measures in place, including regulations and/or prohibitions on transshipments. All coastal States of the Southeast Pacific are members or cooperating non-members of the relevant RFMOs while the majority of coastal States of the Southeast Atlantic region are members of a RFMO with an ABNJ mandate in the region. However, only few coastal States have ratified the FAO Port States and Compliance Agreements as well as UNFSA in both regions. CPPS member States in the Southeast Pacific also signed a Declaration on IUU fishing activities in October 2017.

<sup>55</sup> United Nations Food and Agriculture Organization, 'International Plan of Action to Prevent, Deter, and Eliminate Illegal, Unreported and Unregulated Fishing' (2001), art. 3.1.

<sup>56</sup> United Nations Food and Agriculture Organization, 'International Plan of Action to Prevent, Deter, and Eliminate Illegal, Unreported and Unregulated Fishing' (2001), art. 3.2.

<sup>57</sup> United Nations Food and Agriculture Organization, 'International Plan of Action to Prevent, Deter, and Eliminate Illegal, Unreported and Unregulated Fishing' (2001), art. 3.2.



# About the STRONG High Seas project

The STRONG High Seas project is a five-year project that aims to strengthen regional ocean governance for the conservation and sustainable use of marine biodiversity in areas beyond national jurisdiction. Working with the Secretariat of the Comisión Permanente del Pacífico Sur (CPPS; Permanent Commission for the South Pacific) and the Secretariat of the West and Central Africa Regional Seas Programme (Abidjan Convention), the project will develop and propose targeted measures to support the coordinated development of integrated and ecosystem-based management approaches for ocean governance in areas beyond national jurisdiction. In this project, we carry out trans-disciplinary scientific assessments to provide decision-makers, both in the target regions and globally, with improved knowledge and under-

standing on high seas biodiversity. We engage with stakeholders from governments, private sector, scientists and civil society to support the design of integrated, cross-sectoral approaches for the conservation and sustainable use of biodiversity in the Southeast Atlantic and Southeast Pacific. We then facilitate the timely delivery of these proposed approaches for potential adoption into the relevant regional policy processes. To enable an interregional exchange, we further ensure dialogue with relevant stakeholders in other marine regions. To this end, we set up a regional stakeholder platform to facilitate joint learning and develop a community of practice. Finally, we explore links and opportunities for regional governance in a new international and legally-binding instrument on marine biodiversity in the high seas.

**Project duration:** June 2017 – May 2022

**Coordinator:** Institute for Advanced Sustainability Studies (IASS)

**Implementing partners:** BirdLife International, Institute for Sustainable Development and International Relations (IDDRI), International Ocean Institute (IOI), Universidad Católica del Norte, WWF Colombia, WWF Germany

**Regional partners:** Secretariat of the Comisión Permanente del Pacífico Sur (CPPS), Secretariat of the Abidjan Convention

**Website:** [prog-ocean.org/our-work/strong-high-seas](http://prog-ocean.org/our-work/strong-high-seas)

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Partners of the STRONG High Seas project:



ABIDJAN CONVENTION  
CONVENTION D'ABIDJAN



IDDRI



International Ocean Institute  
African Region

